

Art. 13(2) RPBA 2020 which justified taking the newly submitted auxiliary requests into account.

In the ex parte case T 2351/17 the board found that there were exceptional circumstances, given that it had raised a new objection under Art. 123(2) EPC in its preliminary opinion and that the amendments were designed to overcome that objection and did not give rise to any new ones.

For further ex parte cases where the board raised an objection for the first time in its preliminary opinion and considered this (partly together with the fact that the reaction to this objection was appropriate) to be an exceptional circumstance, see e.g. T 2010/15 (new clarity objection and inventive-step objection), T 2461/16 (new clarity objection), T 1609/16 (new clarity objection), T 1870/15 (auxiliary requests aimed at overcoming new clarity objection), T 2429/17 (new objections under Art. 84 and 123(2) EPC), T 2214/15 (good faith reaction to new objections of lack of support), T 1166/18 (legitimate reaction to objections under Art. 84 and 123(2) EPC), T 428/18 (first, second and third auxiliary requests were legitimate attempts to overcome new objections under Art. 84 and 123(2) EPC, filed at earliest opportunity), T 545/18 (appropriate reaction to objection under Art. 123(2) EPC raised for the first time the communication under Art. 15(1) RPBA 2020).

In the inter partes case T 1756/16 a clarity objection to auxiliary request 1 filed with the reply was raised for the first time by the board, of its own motion, in its preliminary opinion under Art. 15(1) RPBA 2020. The respondent (patent proprietor) sought to overcome this objection at the oral proceedings by filing a "new auxiliary request 1" containing just one minor amendment (lowering of the indices for intensity features "I44" and "I45"). The board found that its objection amounted to an exceptional circumstance justifying the filing of the auxiliary request at this stage. See also T 1771/17 (objection raised in preliminary opinion of the opposition division was not reflected in the decision under appeal and thus not part of the appeal proceedings until it was mentioned in the board's preliminary opinion).

In T 1224/15 the appellant (patent proprietor) had filed a new auxiliary request 3 in response to an objection raised by the board under Art. 123(2) EPC in its preliminary opinion. The respondent (opponent) contended that this objection had already been raised in its reply to the grounds of appeal. The board, however, observed that the respondent had merely **referred to its notice of opposition** and had not countered the arguments on which the contested decision was based, as was required under Art. 12(2) RPBA 2007. This objection was therefore disregarded (Art. 12(4) RPBA 2007). The board thus considered the amendment made in auxiliary request 3 to be a direct response to its preliminary opinion. Since this amendment (deletion of a dependent claim) also did not give rise to any new objection or entail any change to the arguments in support of insufficient disclosure and lack of novelty, the board found the new request admissible (Art. 13(2) RPBA 2020).

For further inter partes cases where the board raised a new objection in its preliminary opinion and admitted the request filed in response, see T 1152/17 (direct reaction to new aspect regarding interpretation of claim 1) and T 2091/18.

b) Early objection raised by examining division reintroduced by board

In T 922/17 the board took into consideration that, while the objection at issue had already been introduced by the examining division in an earlier communication, it was contained in neither the communication underlying the contested decision with respect to the main request nor the contested decision. The board therefore held that, in the case in hand, the fact that it had reintroduced the Art. 123(2) EPC objection in its communication under Art. 15(1) RPBA 2020 could be regarded as an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020. Moreover, the effect of the amendments at issue was readily apparent, such that the board was satisfied that the appellant had justified the amendments by cogent reasons as required by Art. 13(2) RPBA 2020.

However, see also the decisions summarised below in chapter V.A.4.5.6b) (T 2778/17, T 2279/16, T 14/20, T 1080/15, T 597/16, T 689/15), in which the boards considered the requirement of exceptional circumstances not to be fulfilled for objections or arguments that had already been raised by the examining division.

c) Objections or arguments raised for the first time during oral proceedings

In T 1561/15 the board held that there were exceptional circumstances within the meaning of Art. 13(2) RPBA 2020 in that it had first objected to an impermissible intermediate generalisation at the oral proceedings and the appellant had demonstrated that the amendment to the claim was a **direct response** to that objection.

In T 1482/17 the board admitted auxiliary requests filed during the oral proceedings. As regards the requirement that their filing be justified by exceptional circumstances, the board observed that adding another clarifying feature was a **direct response** to a new line of argument that the board had, of its own motion, raised for the first time during the oral proceedings. This line of argument was a departure from its preliminary opinion that the earlier auxiliary request 1 was allowable; this implied that there was little prospect of the other auxiliary requests being allowable either. In view of this exceptional circumstance, the board considered that, even at this late stage in the proceedings, the patent proprietor was entitled to be given a chance to overcome the newly raised objections.

Similarly, in T 1702/18 the board held that the shift in focus vis-à-vis previous arguments and the resulting change in the preliminary assessment of allowability of the then main request were an unforeseeable and unexpected development to which the respondent (patent proprietor) should be given an opportunity to respond in an appropriate manner. In the board's view the amendments overcame clearly and in a straightforward manner the objection of added subject-matter raised and did not change the substance of the debates concerning the other contentious issues at stake. The board considered the circumstances of this case to be exceptional within the meaning of Art. 13(2) RPBA 2020 and decided to admit the requests at issue into the proceedings.

- d) Clarifying claim amendment during oral proceedings not objected to by the other party

In T.1774/17, the appellant (opponent) had no objection to the admission into the proceedings of the main request, which was intended to overcome an Art. 123(2) EPC objection. The single-word amendment in auxiliary request 1A merely made explicit a feature which the opposition division had already considered to be implicit in the request on which the decision under appeal was based. The board, in this particular case, decided to admit the request.

The other party's agreement was also mentioned in T.1294/16 as an element to be taken into account when establishing exceptional circumstances.

- e) Filing a slightly amended claim announced in good time

In T.278/20 the board admitted a new main request (filed as auxiliary request 5b after receipt of the board's preliminary opinion) for the following reasons. Auxiliary request 5b was identical to auxiliary request 5a, which had already been filed at first instance and with the reply, the only difference being that a reference back to claim 20 had been deleted from claim 24. What was more, the respondent (patent proprietor) had already requested in the reply that, if the board were to endorse the objection to this reference, the decision be based on a version in which it had been corrected. Finding that the later filing of auxiliary request 5b had merely formalised that announcement without making the proceedings more complex or taking them in a new direction, the board concluded that there were exceptional circumstances (Art. 13(2) RPBA 2020).

- f) Claim amendment addressing all pending objections and thus avoiding oral proceedings

In T.1055/17 the final main request was filed after the summons to oral proceedings had been issued. Claim 1 of this request was similar to claim 1 of the previous first auxiliary request upheld by the opposition division, but more closely adhered to the wording of the granted claims. All method claims had been deleted. The board agreed with the patent proprietor that this request overcame all pending objections. The board held that admitting this request thus served procedural economy. It avoided the need for oral proceedings, considering that the opponent had expressed its intention not to make any further observations in this case. The board concluded that these were exceptional circumstances within the meaning of Art. 13(2) RPBA 2020 and admitted the request into the appeal proceedings.

- g) Deletion of claims or alternatives in claims

In T.306/18 auxiliary request 1 was limited to the sole process claim in the patent as granted (after deletion of the device claim), which only needed to be examined for inventive step. According to the board, its filing did not change the scope of the appeal proceedings. That there were no new issues to be considered at this very advanced stage reached in the proceedings and that removing the device claim had simplified the proceedings

amounted to exceptional circumstances within the meaning of Art. 13(2) RPBA 2020; these circumstances were decisive for the board's exercise of its discretion.

On the deletion of claims and alternatives in claims, see also chapter V.A.4.2.2d). The deletions at issue in decisions T 713/14, T 1224/15, T 2222/15, T 1597/16, T 1439/16, T 1569/17, T 853/17, T 306/18 and T 482/19 were considered to be amendments to the appeal case but, in most cases, admitted nonetheless, although not in e.g. T 482/19 and T 2222/15.

h) Editorial amendments to remove inconsistencies

In T 131/18 the main request at issue (filed as auxiliary request 6 after notification of the summons to oral proceedings) was, save for two amendments, identical in wording and content to auxiliary request 3, which had already been filed in response to the reply and which the board considered to meet the conditions for admission under Art. 13(1) RPBA 2020. The two amendments in the main request related to inconsistencies remaining in auxiliary request 3, namely wording regarded as incompatible with Art. 123(2) EPC: the appellant (patent proprietor) had removed from claim 1 but left in dependent claim 2, and a somewhat unclear expression it had replaced in claim 1 but not in method claim 6. These inconsistencies had been cleared up in the main request. The board concurred with the appellant that the amendments were merely editorial changes occasioned chiefly by its communication under Art. 15(1) RPBA 2020, and classed this as an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020. Art. 13(2) RPBA 2020 had not been intended to rule out entirely the possibility of making minor amendments such as ones correcting obvious discrepancies or grammatical errors, which were admissible under R. 139 EPC for instance, once the summons to oral proceedings had been issued.

i) Right to be heard violated by the examining division and no other party affected

In T 545/18 the appellant (applicant) submitted for the first time during the oral proceedings before the board that its right to be heard had been violated in the first-instance proceedings. The board considered that, given the great importance attached to the right to be heard in the EPC and in the case law and the facts that no other party was affected by the late raising of this objection and that the board was in a position to take a decision on this issue without postponing the oral proceedings, there were exceptional circumstances within the meaning of Art. 13(2) RPBA 2020.

j) Amendment not detrimental to procedural economy and no other party affected

In T 1294/16 the board observed that neither Art. 13(2) RPBA 2020 nor the explanatory remarks in CA/3/19 explained how to determine in general whether the circumstances of a case were "exceptional". However, the example of exceptional circumstances provided in the explanatory remarks (namely a new objection raised by the board) suggested that exceptionality was not necessarily linked to events being exceptional in the sense of deviating from the expected, but could also be caused by considerations related to the legal framework, notably the principles underlying the Rules of Procedure. Art. 12

and T 13 RPBA 2020 implemented the "convergent approach", the major motivation for which was the procedural economy of the appeal proceedings. The board deduced from this that if admittance of a (late-filed) submission was not detrimental to procedural economy, it was appropriate to accept that there were "exceptional circumstances" within the meaning of Art. 13(2) RPBA 2020, provided that this did not adversely affect the other party. Moreover, the board noted that there were circumstances which were beyond the submitting party's control, e.g. the board's judgement as to whether it could deal with the proposed submission without undue delay. If the board, of its own motion, found the circumstances exceptional in view of the purpose of the convergent approach, then cogent legal reasons did not need to be brought forward by the party. In the case in hand, the board admitted the three late-filed auxiliary requests because they were filed in ex parte proceedings and the board was able to deal with the amendment without undue delay during the oral proceedings.

4.5.6 New requests filed – no exceptional circumstances established

a) Purpose of the board's preliminary opinion

The primary purpose of a board's preliminary opinion is to establish the framework of the appointed oral proceedings, i.e. to prepare the oral proceedings, rather than being an invitation to a party to make further submissions or to file further requests (T 2703/16, with reference to T 1459/11). See also e.g. T 752/16, T 995/18, T 2271/18.

Each party to appeal proceedings must present its own case at the outset – if necessary, by responding to the case made by the opposing party immediately – rather than waiting to see whether the board later confronts it with an unfavourable opinion (T 995/18).

b) Preliminary opinion of the board maintaining objections or arguments raised by examining division

In T 2778/17 the appellant (applicant) argued that a reaction in response to the provisional opinion of the board should be possible. For reasons of procedural economy it would not be expedient to file beforehand a plurality of auxiliary requests without knowledge of the opinion of the board. The board did not agree. It recalled the basic principle of the third level of the convergent approach that, at this stage of the appeal proceedings, amendments to a party's appeal case were not to be taken into consideration and that only a limited exception was provided for. The board could not see any exceptional circumstances justified with cogent reasons by the appellant. The appellant had merely stated that it considered it desirable and justified to amend its requests after having been provided with the board's provisional opinion on the merits of the case. It had not argued that the clarity objection was newly raised by the board or that it had not been possible to file the amended claims with the statement of grounds of appeal.

In T 689/15 the application was refused because, inter alia, the subject-matter of claim 1 of the then first auxiliary request lacked inventive step over the combined disclosures of documents D1 and D2. The board's assessment of inventive step in its preliminary opinion was based on the same documents and the board identified the same closest prior art